

COMMITTEE ON GOVERNMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2860
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 8, Arizona Revised Statutes, is amended by adding
3 chapter 7, to read:

4 CHAPTER 7. INDEPENDENT OVERSIGHT COMMITTEE

5 ARTICLE 1. GENERAL PROVISIONS

6 8-931. Definitions

7 IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

8 1. "COMMITTEE" MEANS THE INDEPENDENT OVERSIGHT COMMITTEE ON THE
9 DEPARTMENT OF CHILD SAFETY.

10 2. "DEPARTMENT" MEANS THE DEPARTMENT OF CHILD SAFETY.

11 8-932. Independent oversight committee on the department of
12 child safety; duties; confidentiality; penalties;
13 violation; classification; definitions

14 A. THE INDEPENDENT OVERSIGHT COMMITTEE ON THE DEPARTMENT OF CHILD
15 SAFETY IS ESTABLISHED CONSISTING OF THE FOLLOWING MEMBERS:

16 1. TWO MEMBERS OF THE SENATE WHO ARE APPOINTED BY THE PRESIDENT OF
17 THE SENATE AND WHO ARE MEMBERS OF DIFFERENT POLITICAL PARTIES.

18 2. TWO MEMBERS OF THE HOUSE OF REPRESENTATIVES WHO ARE APPOINTED BY
19 THE SPEAKER OF THE HOUSE OF REPRESENTATIVES AND WHO ARE MEMBERS OF
20 DIFFERENT POLITICAL PARTIES.

21 3. TWO MEMBERS WHO ARE APPOINTED BY THE GOVERNOR AND WHO HAVE
22 DEMONSTRATED EXPERIENCE IN CHILD WELFARE ADMINISTRATION, AUDITING,
23 INVESTIGATIONS, SYSTEMS IMPROVEMENT OR PERFORMANCE MANAGEMENT.

24 4. ONE MEMBER WHO IS APPOINTED BY THE ATTORNEY GENERAL.

25 5. ONE MEMBER WHO IS APPOINTED BY THE CHIEF JUSTICE OF THE SUPREME
26 COURT AND WHO HAS EXPERIENCE IN JUVENILE LAW, DEPENDENCY OR COURT
27 ADMINISTRATION.

28 6. ONE MEMBER WHO IS APPOINTED BY THE GOVERNOR AND WHO IS A
29 PHYSICIAN LICENSED PURSUANT TO TITLE 32, CHAPTER 13 OR 17.

1 7. ONE MEMBER WHO IS APPOINTED BY THE GOVERNOR, WHO IS A MENTAL
2 HEALTH PROFESSIONAL WHO IS LICENSED PURSUANT TO TITLE 32, CHAPTER 33 AND
3 WHO HAS EXPERIENCE IN TRAUMA-INFORMED CARE AND CHILD WELFARE.

4 8. ONE MEMBER WHO REPRESENTS A FEDERALLY RECOGNIZED INDIAN TRIBE IN
5 THIS STATE AND WHO IS APPOINTED THROUGH TRIBAL CONSULTATION THAT IS
6 FACILITATED BY AN ORGANIZATION THAT REPRESENTS TRIBES IN THIS STATE. IF A
7 MEMBER IS NOT APPOINTED WITHIN SIXTY DAYS AFTER A REQUEST FOR AN
8 APPOINTMENT, A MEMBER SHALL BE APPOINTED BY THE GOVERNOR.

9 9. ONE MEMBER WHO IS APPOINTED BY THE GOVERNOR AND WHO REPRESENTS
10 FOSTER PARENTS.

11 10. ONE MEMBER WHO IS APPOINTED BY THE GOVERNOR, WHO HAS EXPERIENCE
12 IN THE CHILD WELFARE SYSTEM AND WHO MAY BE A PREVIOUS CHILD WHO WAS IN THE
13 CARE AND CUSTODY OF THE DEPARTMENT.

14 11. ONE MEMBER WHO IS APPOINTED BY THE GOVERNOR AND WHO REPRESENTS
15 A COUNTY ATTORNEY'S OFFICE, A LAW ENFORCEMENT AGENCY OR A CHILD
16 MALTREATMENT INVESTIGATIVE UNIT AND WHO HAS EXPERIENCE WITH THE CHILD
17 WELFARE SYSTEM.

18 12. ONE MEMBER WHO IS APPOINTED BY THE CHIEF JUSTICE OF THE SUPREME
19 COURT OR A DESIGNEE OF THE CHIEF JUSTICE AND WHO REPRESENTS A
20 COURT-APPOINTED SPECIAL ADVOCATE ORGANIZATION OR VOLUNTEER ADVOCATE
21 PROGRAM.

22 B. THE MEMBERS OF THE COMMITTEE SHALL ANNUALLY SELECT A
23 CHAIRPERSON. THE CHAIRPERSON MAY NOT BE A CURRENT EMPLOYEE OF THE
24 DEPARTMENT. ANY MEMBER OF THE COMMITTEE WHO IS A CURRENT EMPLOYEE OF THE
25 DEPARTMENT OR WHO IS A VENDOR WITH DIRECT RESPONSIBILITY FOR DEPARTMENT
26 BUSINESS MAY NOT BE A VOTING MEMBER. COMMITTEE MEMBERS SHALL SERVE
27 THREE-YEAR TERMS. MEMBERS MAY BE REAPPOINTED FOR ONE SUBSEQUENT FULL
28 TERM.

29 C. A MEMBER MAY BE REMOVED BY THE MEMBER'S APPOINTING AUTHORITY FOR
30 ANY OF THE FOLLOWING:

- 31 1. NEGLECT OF DUTY.
32 2. MISCONDUCT.
33 3. INABILITY TO COMPLETE MEMBERSHIP OBLIGATIONS.
34 4. UNEXCUSED ABSENCES FROM THREE CONSECUTIVE COMMITTEE MEETINGS.

35 D. COMMITTEE MEMBERS SERVE WITHOUT COMPENSATION EXCEPT FOR
36 REASONABLE TRAVEL EXPENSES. REIMBURSEMENT PURSUANT TO THIS SUBSECTION
37 SHALL BE MADE FROM MONIES THAT ARE APPROPRIATED TO THE INDEPENDENT
38 OVERSIGHT COMMITTEE ON THE DEPARTMENT OF CHILD SAFETY FUND ESTABLISHED BY
39 SECTION 8-933.

40 E. THE COMMITTEE SHALL EMPLOY AN EXECUTIVE DIRECTOR WHO SERVES AT
41 THE PLEASURE OF THE COMMITTEE. THE EXECUTIVE DIRECTOR MAY NOT BE AN
42 EMPLOYEE OF THE DEPARTMENT. THE EXECUTIVE DIRECTOR MAY EMPLOY EXPERTS AND
43 ADMINISTRATIVE STAFF AND MAY CONTRACT WITH EXPERTS.

44 F. COMMITTEE MEMBERS SHALL DISCLOSE ALL ACTUAL AND POTENTIAL
45 CONFLICTS OF INTEREST AND SHALL RECUSE THEMSELVES FROM ANY MATTER THE
46 COMMITTEE IS CONSIDERING IN WHICH A MEMBER HAS A CONFLICT OF INTEREST OR
47 MAY HAVE A CONFLICT OF INTEREST.

1 G. THE COMMITTEE SHALL MEET AT LEAST MONTHLY. A MAJORITY OF THE
2 MEMBERS CONSTITUTES A QUORUM FOR THE TRANSACTION OF BUSINESS. THE
3 COMMITTEE IS SUBJECT TO TITLE 38, CHAPTER 3, ARTICLE 3.1 EXCEPT THAT
4 COMMITTEE MEMBERS SHALL MEET IN EXECUTIVE SESSION WHEN DISCUSSING
5 PROTECTED INFORMATION. RECORDS RECEIVED BY THE COMMITTEE THAT CONTAIN
6 PROTECTED INFORMATION ARE CONSIDERED CONFIDENTIAL AND ARE NOT SUBJECT TO
7 TITLE 39, CHAPTER 1, ARTICLE 2 EXCEPT IN DE-IDENTIFIED AND AGGREGATE FORM
8 THAT IS CONSISTENT WITH APPLICABLE STATE AND FEDERAL LAW. THE COMMITTEE
9 SHALL ADOPT WRITTEN PROCEDURES FOR ALL OF THE FOLLOWING:
10 1. SECURE HANDLING, STORAGE AND TRANSMISSION OF PROTECTED
11 INFORMATION.
12 2. TRAINING FOR COMMITTEE MEMBERS AND STAFF REGARDING
13 CONFIDENTIALITY REQUIREMENTS.
14 3. DE-IDENTIFICATION STANDARDS FOR PUBLIC REPORTING.
15 4. RECEIVING, TRIAGING AND RESPONDING TO COMPLAINTS AND
16 WHISTLEBLOWER COMMUNICATION.
17 H. THE COMMITTEE IS INDEPENDENT FROM THE DEPARTMENT FOR PURPOSES OF
18 OVERSIGHT, CRITICAL INCIDENT REVIEW, COMPLAINT TREND ANALYSIS AND
19 PERFORMANCE EVALUATION. THE COMMITTEE SHALL DO ALL OF THE FOLLOWING:
20 1. REVIEW AND ANALYZE THE DEPARTMENT'S PERFORMANCE MEASURES,
21 INCLUDING ALL OF THE FOLLOWING:
22 (a) CHILD SAFETY OUTCOMES.
23 (b) THE RECURRENCE OF MALTREATMENT.
24 (c) DEPARTMENT RESPONSE TIMES TO CHILD WELFARE ALLEGATIONS.
25 (d) CHILD PLACEMENT STABILITY.
26 (e) TIMELINES FOR PERMANENCY PLACEMENT.
27 (f) INCIDENTS OF RUNAWAY CHILDREN WHO ARE IN THE CARE OF THE
28 DEPARTMENT.
29 (g) THE USE OF CONGREGATE CARE.
30 (h) RATES OF REENTRY.
31 (i) ANY OTHER INDICATORS THAT ARE IDENTIFIED BY THE COMMITTEE.
32 2. REVIEW DEPARTMENT POLICIES AND PRACTICES RELATED TO ALL OF THE
33 FOLLOWING:
34 (a) HOTLINE SCREENING.
35 (b) INVESTIGATIONS.
36 (c) SAFETY PLANNING.
37 (d) REMOVAL OF A CHILD FROM THE CHILD'S HOME.
38 (e) REUNIFICATION OF A CHILD WITH THE CHILD'S PARENT OR GUARDIAN.
39 (f) GUARDIANSHIP.
40 (g) ADOPTION.
41 (h) CARE OF A CHILD AFTER THE CHILD LEAVES THE CUSTODY OF THE
42 DEPARTMENT.
43 3. REVIEW DEPARTMENT STAFFING LEVELS, CASELOAD RATIOS, VACANCIES,
44 TRAINING, RETENTION, WORKER SAFETY AND SUPERVISION PRACTICES.
45 4. REVIEW VENDOR PERFORMANCE, VENDOR CONTRACT COMPLIANCE, INCIDENT
46 REPORTING, SERVICE AVAILABILITY AND BILLING INTEGRITY.

1 5. CONDUCT SYSTEMIC REVIEWS THAT ARE FOCUSED ON HIGH-RISK AREAS,
2 INCLUDING RURAL AND TRIBAL ACCESS, MULTIDISCIPLINARY COORDINATION AND
3 TIMELINESS OF COURT-REQUIRED ACTION.
4 6. REVIEW CRITICAL INCIDENTS AND PATTERNS OF CRITICAL INCIDENTS,
5 INCLUDING ROOT CAUSE ANALYSIS AND SYSTEMIC CONTRIBUTING FACTORS.
6 7. EVALUATE COMPLIANCE WITH APPLICABLE STATE AND FEDERAL
7 REQUIREMENTS, INCLUDING CONFIDENTIALITY, DUE PROCESS REQUIREMENTS AND
8 CHILD WELFARE MANDATES.
9 8. MAINTAIN A COMPLIANT INTAKE PROCESS AND EVALUATE TRENDS TO
10 IDENTIFY SYSTEMIC ISSUES.
11 9. ISSUE WRITTEN FINDINGS AND RECOMMENDATIONS AND TRACK CORRECTIVE
12 ACTION IMPLEMENTATION.
13 I. THE COMMITTEE MAY DO ANY OF THE FOLLOWING:
14 1. REQUEST BRIEFINGS FROM THE DEPARTMENT AND VENDORS.
15 2. CONDUCT SITE VISITS, INCLUDING VISITS OF REGIONAL DEPARTMENT
16 OFFICES AND CONTRACTED FACILITIES, AND PROGRAM REVIEWS.
17 3. CONVENE EXPERT PANELS AND CONSULT WITH MEDICAL, BEHAVIORAL
18 HEALTH AND CHILD WELFARE SPECIALISTS.
19 4. REQUEST INDEPENDENT AUDITS OR EVALUATIONS.
20 5. ENTER INTO CONTRACTS FOR ANY SERVICES THAT ARE NECESSARY TO
21 COMPLETE COMMITTEE BUSINESS.
22 6. IF THE COMMITTEE IDENTIFIES AN IMMINENT SYSTEMIC RISK THAT
23 PRESENTS A SUBSTANTIAL RISK TO CHILD SAFETY, THE COMMITTEE MAY ISSUE AN
24 URGENT NOTIFICATION TO THE GOVERNOR, THE PRESIDENT OF THE SENATE AND THE
25 SPEAKER OF THE HOUSE OF REPRESENTATIVES IN A MANNER THAT PROTECTS THE
26 CONFIDENTIALITY OF THE DEPARTMENT INFORMATION THAT IDENTIFIED THE
27 SUBSTANTIAL THREAT.
28 7. COORDINATE WITH APPROPRIATE LAW ENFORCEMENT AGENCIES, TRIBAL
29 GOVERNMENTS, LICENSING AGENCIES AND CHILD FATALITY OR MULTIDISCIPLINARY
30 REVIEW ENTITIES TO REDUCE DUPLICATION.
31 8. ENTER INTO MEMORANDUMS OF UNDERSTANDING WITH APPROPRIATE
32 AGENCIES TO FACILITATE THE SHARING OF CONFIDENTIAL INFORMATION.
33 J. IF THE COMMITTEE IDENTIFIES CREDIBLE EVIDENCE OF CRIMINAL
34 CONDUCT, CIVIL RIGHTS VIOLATIONS OR SYSTEMIC VIOLATIONS OF LAW, THE
35 COMMITTEE MAY REFER THE MATTER TO THE APPROPRIATE LAW ENFORCEMENT AGENCY.
36 A REFERRAL PURSUANT TO THIS SUBSECTION MAY INCLUDE A DE-IDENTIFIED SUMMARY
37 OF THE ALLEGATION, IF REQUESTED BY THE RECEIVING LAW ENFORCEMENT AGENCY,
38 AND MAY INCLUDE PROTECTED INFORMATION ONLY TO THE EXTENT ALLOWED BY
39 APPLICABLE STATE OR FEDERAL LAW, SUBJECT TO RULES ADOPTED BY THE
40 COMMITTEE. A REFERRAL TO A FEDERAL LAW ENFORCEMENT AGENCY PURSUANT TO
41 THIS SUBSECTION MAY BE MADE WITHOUT PRIOR APPROVAL OF THE DEPARTMENT IF
42 THE COMMITTEE REASONABLY BELIEVES THE REFERRAL IS NECESSARY TO PROTECT
43 CHILD SAFETY OR PRESERVE EVIDENCE. THE COMMITTEE MAY ADOPT RULES TO
44 IMPLEMENT PROCEDURES THAT GOVERN REFERRALS PURSUANT TO THIS SUBSECTION.
45 K. NOTWITHSTANDING ANY OTHER LAW, THE DEPARTMENT SHALL PROVIDE
46 COMMITTEE MEMBERS AND STAFF WITH ACCESS TO ALL DEPARTMENT RECORDS, DATA
47 AND INFORMATION THAT ARE NECESSARY TO PERFORM THE COMMITTEE'S DUTIES,
48 INCLUDING PROTECTED INFORMATION, SUBJECT TO THE REQUIREMENTS OF THIS

1 SECTION AND APPLICABLE STATE AND FEDERAL LAW. THE DEPARTMENT SHALL
2 PROVIDE REQUESTED INFORMATION IN DE-IDENTIFIED FORM AND IN A FORMAT THAT
3 IS REASONABLY REQUESTED BY THE COMMITTEE. EACH DEPARTMENT VENDOR SHALL
4 COOPERATE WITH COMMITTEE REQUESTS RELATED TO SERVICES PROVIDED BY THE
5 VENDOR UNDER DEPARTMENT AUTHORITY OR THROUGH A VENDOR CONTRACT WITH THE
6 DEPARTMENT. IF A VENDOR BELIEVES THAT INFORMATION REQUESTED BY THE
7 COMMITTEE MAY NOT BE DISCLOSED, THE DEPARTMENT OR THE VENDOR WITHIN FIVE
8 BUSINESS DAYS SHALL PROVIDE THE COMMITTEE WITH A WRITTEN EXPLANATION FOR
9 THE DEPARTMENT'S OR VENDOR'S BELIEF THAT THE REQUESTED INFORMATION MAY NOT
10 BE DISCLOSED. THE WRITTEN EXPLANATION SHALL CITE ANY LEGAL AUTHORITY THAT
11 SUPPORTS THE DEPARTMENT'S OR VENDOR'S POSITION. THE DEPARTMENT SHALL
12 PROVIDE BOTH OF THE FOLLOWING:

13 1. CRITICAL INCIDENT RECORDS AS SOON AS PRACTICABLE BUT NOT LATER
14 THAN SEVENTY-TWO HOURS AFTER THE REQUEST OF THE COMMITTEE.

15 2. ANY OTHER REQUESTED RECORDS NOT LATER THAN TEN BUSINESS DAYS
16 AFTER THE REQUEST OF THE COMMITTEE. THE COMMITTEE MAY AGREE IN WRITING TO
17 AN EXTENSION FOR GOOD CAUSE.

18 L. IF THE COMMITTEE DETERMINES THAT THE DEPARTMENT OR A VENDOR HAS
19 NOT PROVIDED ACCESS TO DEPARTMENT INFORMATION IN THE TIME FRAMES REQUIRED
20 BY SUBSECTION K OF THIS SECTION OR HAS FAILED TO COOPERATE IN GOOD FAITH,
21 THE COMMITTEE MAY REFER THE FAILURE TO PROVIDE THE INFORMATION TO THE
22 ATTORNEY GENERAL. THE ATTORNEY GENERAL SHALL EXPEDITE REFERRALS FROM THE
23 COMMITTEE PURSUANT TO THIS SUBSECTION. THE COMMITTEE MAY BE AWARDED
24 ATTORNEY FEES AND COSTS RELATED TO ENFORCEMENT EFFORTS TAKEN PURSUANT TO
25 THIS SUBSECTION. THE ATTORNEY GENERAL MAY:

26 1. REQUEST COMPLIANCE WITH THE REQUIREMENTS OF THIS SECTION THROUGH
27 WRITTEN DEMAND.

28 2. REQUEST A COURT ORDER THAT COMPELS COMPLIANCE WITH THE
29 REQUIREMENTS OF THIS SECTION.

30 M. THE COMMITTEE SHALL ESTABLISH A CONFIDENTIAL PROCESS TO RECEIVE
31 COMPLAINTS AND CONCERNS FROM THE PUBLIC AND DEPARTMENT EMPLOYEES. THE
32 CONFIDENTIAL PROCESS SHALL DO ALL OF THE FOLLOWING:

33 1. DISTINGUISH BETWEEN INDIVIDUAL DEPARTMENT CASE CONCERNS AND
34 OVERALL SYSTEM ISSUES.

35 2. ALLOW FOR THE REFERRAL OF INDIVIDUAL DEPARTMENT CASE CONCERNS TO
36 THE OFFICE OF OMBUDSMAN-CITIZENS AIDE ESTABLISHED BY SECTION 41-1375,
37 OTHER APPROPRIATE DEPARTMENT UNITS, AN APPROPRIATE LAW ENFORCEMENT AGENCY
38 OR ANY OTHER STATE AGENCY.

39 3. ENSURE THAT SYSTEMIC PATTERNS IDENTIFIED THROUGH COMPLAINTS THAT
40 ARE RECEIVED BY THE COMMITTEE ARE SELECTED FOR SYSTEMIC REVIEW.

41 N. A PERSON MAY REPORT INFORMATION TO THE COMMITTEE PURSUANT TO THE
42 PROCESS ESTABLISHED PURSUANT TO SUBSECTION M OF THIS SECTION. THE
43 DEPARTMENT OR A DEPARTMENT VENDOR MAY NOT ENGAGE IN RETALIATION AGAINST A
44 PERSON MAKING A REPORT PURSUANT TO THIS SUBSECTION, REPORTING IN GOOD
45 FAITH TO THE COMMITTEE, PARTICIPATING IN A COMMITTEE REVIEW OR PROVIDING
46 TESTIMONY TO THE COMMITTEE. A PERSON WHO BELIEVES RETALIATION HAS
47 OCCURRED MAY SUBMIT A COMPLAINT REGARDING THE RETALIATION TO THE

1 COMMITTEE. THE COMMITTEE MAY REFER THE RETALIATION COMPLAINT TO AN
2 APPROPRIATE LAW ENFORCEMENT AGENCY FOR INVESTIGATION.

3 O. A COMMITTEE MEMBER, COMMITTEE EMPLOYEE OR COMMITTEE CONTRACTOR
4 MAY NOT DISCLOSE PROTECTED INFORMATION EXCEPT AS PROVIDED IN THIS SECTION.
5 THE COMMITTEE SHALL PUBLISH COMMITTEE REPORTS ONLY IN DE-IDENTIFIED,
6 AGGREGATE FORM AND SHALL ENSURE THAT INFORMATION IS PROVIDED IN A MANNER
7 THAT IS DESIGNED TO PREVENT THE IDENTIFICATION OF A CHILD OR A FAMILY.
8 COMMITTEE MEMBERS AND STAFF SHALL COMPLETE TRAINING ON CONFIDENTIALITY AND
9 RECORD HANDLING BEFORE ACCESSING PROTECTED INFORMATION.

10 P. DISCLOSURE OF PROTECTED INFORMATION TO A LAW ENFORCEMENT AGENCY
11 PURSUANT TO THIS SECTION IS AN AUTHORIZED DISCLOSURE OF PROTECTED
12 DEPARTMENT INFORMATION IF THE DISCLOSURE IS BOTH OF THE FOLLOWING:

13 1. LIMITED TO THE MINIMUM DISCLOSURE OF PROTECTED INFORMATION THAT
14 IS REQUIRED.

15 2. TRANSMITTED USING SECURE METHODS THAT ARE ESTABLISHED BY THE
16 COMMITTEE.

17 Q. NOT LATER THAN SIXTY DAYS AFTER RECEIVING A WRITTEN REPORT OF
18 FINDINGS AND RECOMMENDATIONS FROM THE COMMITTEE, THE DEPARTMENT SHALL
19 PROVIDE A WRITTEN RESPONSE THAT DOES ALL OF THE FOLLOWING INFORMATION:

20 1. IDENTIFIES EACH RECOMMENDATION THAT IS ACCEPTED, PARTIALLY
21 ACCEPTED OR REJECTED.

22 2. IF A RECOMMENDATION IS REJECTED, PROVIDES THE REASON FOR THE
23 REJECTION.

24 3. IF A RECOMMENDATION IS ACCEPTED OR PARTIALLY ACCEPTED, INCLUDES
25 A CORRECTIVE ACTION PLAN WITH MEASURABLE MILESTONES, TARGET COMPLETION
26 DATES AND WHO WITHIN THE DEPARTMENT IS RESPONSIBLE FOR COMPLETING THE
27 RECOMMENDATION.

28 R. THE DEPARTMENT SHALL PROVIDE QUARTERLY PROGRESS UPDATES ON A
29 FORM PRESCRIBED BY THE COMMITTEE ON EACH CORRECTIVE ACTION PLAN CREATED
30 PURSUANT TO SUBSECTION Q OF THIS SECTION. THE COMMITTEE SHALL TRACK ALL
31 CORRECTIVE ACTION PLANS AND MAY PUBLISH DE-IDENTIFIED PROGRESS SUMMARIES
32 IN A QUARTERLY OR ANNUAL REPORT PURSUANT TO SUBSECTION S OF THIS SECTION.

33 S. THE COMMITTEE SHALL SUBMIT THE FOLLOWING:

34 1. QUARTERLY REPORTS TO THE GOVERNOR, THE PRESIDENT OF THE SENATE,
35 THE SPEAKER OF THE HOUSE OF REPRESENTATIVES AND THE CHIEF JUSTICE OF THE
36 SUPREME COURT THAT SUMMARIZE THE COMMITTEE'S OVERSIGHT ACTIVITIES, MAJOR
37 FINDINGS AND CORRECTIVE ACTION PLANS IN DE-IDENTIFIED FORM.

38 2. ON OR BEFORE DECEMBER 1 OF EACH YEAR, A REPORT TO THE GOVERNOR,
39 THE PRESIDENT OF THE SENATE, THE SPEAKER OF THE HOUSE OF REPRESENTATIVES
40 AND THE CHIEF JUSTICE OF THE SUPREME COURT THAT INCLUDES ALL OF THE
41 FOLLOWING:

42 (a) KEY PERFORMANCE INDICATORS AND TRENDS.

43 (b) A SUMMARY OF CRITICAL INCIDENT PATTERN REVIEWS AND SYSTEMIC
44 CONTRIBUTING FACTORS.

45 (c) DEPARTMENT VENDOR PERFORMANCE AND SYSTEMIC SERVICE GAPS.

46 (d) DEPARTMENT STAFFING AND CASELOAD TRENDS.

47 (e) THE STATUS OF DEPARTMENT CORRECTIVE ACTION PLANS.

1 (f) COMMITTEE RECOMMENDATIONS FOR STATUTORY, BUDGETARY AND
2 ADMINISTRATIVE CHANGES.

3 T. SUBJECT TO AVAILABLE RESOURCES AND CONFIDENTIALITY REQUIREMENTS,
4 THE COMMITTEE SHALL DEVELOP AND MAINTAIN A PUBLICLY ACCESSIBLE DASHBOARD
5 OF AGGREGATE, DE-IDENTIFIED CHILD SAFETY PERFORMANCE MEASURES.

6 U. A PERSON WHO KNOWINGLY DISCLOSES PROTECTED INFORMATION IS GUILTY
7 OF A CLASS 1 MISDEMEANOR.

8 V. FOR THE PURPOSE OF THIS SECTION:

9 1. "CRITICAL INCIDENT" MEANS A CHILD DEATH, NEAR DEATH, SERIOUS
10 INJURY, SEXUAL EXPLOITATION OR OTHER EVENT INVOLVING A CHILD WHO IS
11 ALLEGED TO BE THE VICTIM OF ABUSE OR NEGLECT OR WHO IS IN THE CARE OF THE
12 DEPARTMENT.

13 2. "DE-IDENTIFIED" MEANS INFORMATION THAT HAS BEEN DE-IDENTIFIED IN
14 ACCORDANCE WITH 45 CODE OF FEDERAL REGULATIONS SECTION 164.514(b).

15 3. "PROTECTED INFORMATION":

16 (a) MEANS INFORMATION THAT IS MADE CONFIDENTIAL BY STATE LAW,
17 FEDERAL LAW, A COURT ORDER OR RULE.

18 (b) INCLUDES CHILD SAFETY CASE RECORDS, PERSONALLY IDENTIFYING
19 INFORMATION, MEDICAL RECORDS, BEHAVIORAL HEALTH RECORDS, EDUCATIONAL
20 RECORDS AND INFORMATION THAT IS PROTECTED BY THE HEALTH INSURANCE
21 PORTABILITY AND ACCOUNTABILITY ACT (P.L. 104-191) AND THE FAMILY
22 EDUCATIONAL RIGHTS AND PRIVACY ACT (P.L. 93-380).

23 4. "SYSTEMIC REVIEW" MEANS AN EXAMINATION OF POLICIES, PRACTICES,
24 WORKFLOWS, STAFFING, TRAINING, CONTRACTING AND PERFORMANCE MEASURES THAT
25 AFFECT CHILD SAFETY OUTCOMES ACROSS MULTIPLE CASES.

26 5. "VENDOR" MEANS A CONTRACTOR, SUBCONTRACTOR, PROVIDER, PLACEMENT,
27 FACILITY OR ENTITY THAT FURNISHES SERVICES TO THE DEPARTMENT OR TO
28 CHILDREN AND FAMILIES UNDER CONTRACT, AGREEMENT OR AUTHORIZATION OF THE
29 DEPARTMENT.

30 8-933. Independent oversight committee on the department of
31 child safety fund

32 A. THE INDEPENDENT OVERSIGHT COMMITTEE ON THE DEPARTMENT OF CHILD
33 SAFETY FUND IS ESTABLISHED CONSISTING OF LEGISLATIVE APPROPRIATIONS,
34 GRANTS, GIFTS AND DONATIONS. THE INDEPENDENT OVERSIGHT COMMITTEE ON THE
35 DEPARTMENT OF CHILD SAFETY SHALL ADMINISTER THE FUND. MONIES IN THE FUND
36 ARE SUBJECT TO LEGISLATIVE APPROPRIATION.

37 B. MONIES IN THE FUND MAY BE USED FOR ANY OF THE FOLLOWING:

38 1. COMMITTEE STAFFING AND OPERATIONS.

39 2. INDEPENDENT AUDITS, EVALUATIONS AND EXPERT CONSULTATIONS.

40 3. SECURE DATA SYSTEMS AND CONFIDENTIALITY COMPLIANCE.

41 4. COMMITTEE TRAVEL AND SITE VISITS THAT ARE REQUIRED FOR COMMITTEE
42 BUSINESS.

43 C. THE COMMITTEE MAY NOT ACCEPT A GRANT, GIFT OR DONATION THAT MAY
44 CREATE A CONFLICT OF INTEREST.

45 <<Sec. 2. Section 41-1371, Arizona Revised Statutes, is amended to
46 read:

47 41-1371. Definitions

48 In this article, unless the context otherwise requires:

1 1. "Administrative act"[:

2 (a)] Means an action, decision, omission, recommendation, practice,
3 policy or procedure of an agency[:] [but]

4 [(b)] Does not include the preparation or presentation of
5 legislation or the substantive content of a judicial order, decision or
6 opinion.

7 2. "Agency"[:

8 (a)] Means a department, office, corporation, authority,
9 organization, commission, council or board of the executive branch of
10 state government, a department, office, institution, authority,
11 organization, commission, committee, council or board of state government
12 that is independent of the executive or legislative branches of state
13 government or an officer, employee or member of an agency acting or
14 purporting to act in the exercise of official duties. [Agency]

15 [(b)] Does not [mean] [INCLUDE] the judicial department of state
16 government, the [ARIZONA] board of regents, universities or community
17 college districts.

18 3. "CHILD WELFARE OVERSIGHT MATTER":

19 (a) MEANS ANY OVERSIGHT OF THE DEPARTMENT OF CHILD SAFETY THAT
20 RELATES TO ANY OF THE FOLLOWING:

21 (i) THE SAFETY OF A CHILD.

22 (ii) THE PLACEMENT OF A CHILD.

23 (iii) THE CARE OF A CHILD.

24 (iv) THE SUPERVISION OF A CHILD.

25 (v) THE TREATMENT OF A CHILD.

26 (b) INCLUDES ANY OF THE FOLLOWING:

27 (i) A COMPLAINT.

28 (ii) AN INVESTIGATION.

29 (iii) AN AUDIT.

30 (iv) A REVIEW.

31 (v) A SYSTEMIC EXAMINATION.

32 (vi) ANY SERVICES THAT ARE FUNDED, DIRECTED, CONTRACTED, LICENSED
33 OR AUTHORIZED BY THE DEPARTMENT OF CHILD SAFETY.

34 4. "CORRECTIVE ACTION ORDER" MEANS A WRITTEN ORDER THAT IS ISSUED
35 BY THE OMBUDSMAN-CITIZENS AIDE AND THAT DOES ALL OF THE FOLLOWING:

36 (a) IDENTIFIES A VIOLATION OF OR NONCOMPLIANCE WITH AN APPLICABLE
37 LAW OR RULE.

38 (b) STATES A REQUIRED CORRECTIVE ACTION.

39 (c) SETS A DEADLINE FOR IMPLEMENTATION OF THE REQUIRED CORRECTIVE
40 ACTION.

41 5. "COVERED CHILD WELFARE ENTITY":

42 (a) MEANS ANY ENTITY THAT RECEIVES PUBLIC MONIES OR THAT OPERATES
43 UNDER THE AUTHORITY OF THE DEPARTMENT OF CHILD SAFETY IN CONNECTION WITH A
44 CHILD WELFARE OVERSIGHT MATTER.

45 (b) INCLUDES ALL OF THE FOLLOWING:

46 (i) THE DEPARTMENT OF CHILD SAFETY.

47 (ii) A CONTRACTOR OF THE DEPARTMENT OF CHILD SAFETY.

48 (iii) A SUBCONTRACTOR OF THE DEPARTMENT OF CHILD SAFETY.

1 (iv) A PROVIDER THAT PROVIDES SERVICES TO A CHILD WHO IS IN THE
2 CARE OF THE DEPARTMENT OF CHILD SAFETY.

3 (v) A FACILITY THAT PROVIDES SERVICES TO A CHILD WHO IS IN THE CARE
4 OF THE DEPARTMENT OF CHILD SAFETY.

5 (vi) A CHILD WELFARE AGENCY.

6 (vii) A GROUP HOME AS DEFINED IN SECTION 36-1201.

7 6. "HIGH-RISK OR LIFE SAFETY VIOLATION" MEANS A SUBSTANTIATED OR
8 PARTIALLY SUBSTANTIATED OPINION, RECOMMENDATION OR FINDING THAT INVOLVES
9 ANY ACT, OMISSION, PATTERN OR PRACTICE THAT CREATES A SUBSTANTIAL RISK OF
10 ANY OF THE FOLLOWING:

11 (a) SERIOUS PHYSICAL HARM.

12 (b) SEXUAL ABUSE.

13 (c) SEXUAL EXPLOITATION OF A MINOR PURSUANT TO SECTION 13-3553.

14 (d) CHILD SEX TRAFFICKING PURSUANT TO SECTION 13-3212.

15 (e) SUICIDALITY.

16 (f) A MEDICAL CRISIS.

17 (g) A CHILD ABDUCTION OR A RUNAWAY CHILD.

18 (h) WRONGFUL DEATH.]

19 ~~[8.]~~ [7.] "Record" means any document, photograph, film, exhibit
20 or other item developed or received under law or in connection with the
21 transaction of official business except an attorney's work product,
22 communications that are protected under the attorney-client privilege and
23 confidential information as ~~[defined]~~ [DESCRIBED] in section 41-1378,
24 subsection D, paragraph 4.>>

25 <<Sec. 3. Section 41-1376, Arizona Revised Statutes, is amended to
26 read:

27 41-1376. Powers and duties

28 A. The ombudsman-citizens aide shall:

29 1. Investigate the administrative acts of agencies pursuant to
30 section 41-1377, subsections A and B except as provided in section
31 41-1377, subsections C, D and E. The ombudsman-citizens aide shall
32 investigate the administrative acts of an agency without regard to the
33 finality of the administrative act.

34 2. Annually before January 1 prepare a written report to the
35 governor, the legislature and the public that contains a summary of the
36 ombudsman-citizens aide's activities during the previous fiscal year. The
37 ombudsman-citizens aide shall present this report annually before the
38 legislative council and distribute copies of the report to the director of
39 the governor's office of strategic planning and budgeting, the chairperson
40 of the joint legislative budget committee and the cochairpersons of the
41 administrative rules oversight committee. This report shall include:

42 (a) The ombudsman-citizens aide's mission statement.

43 (b) The number of matters that were within each of the categories
44 specified in section 41-1379, subsection B.

45 (c) Legislative issues affecting the ombudsman-citizens aide.

46 (d) Selected case studies that illustrate the ombudsman-citizens
47 aide's work and reasons for complaints.

48 (e) Ombudsman-citizens aide's contact statistics.

1 (f) A description of the public awareness and outreach activities
2 conducted by the ombudsman-citizens aide.

3 (g) Ombudsman-citizens aide's staff.

4 3. Before conducting the first investigation, adopt rules that
5 ensure that confidential information that is gathered will not be
6 disclosed.

7 4. Appoint a deputy ombudsman and prescribe the duties of employees
8 or, subject to appropriation, contract for the services of independent
9 contractors necessary to administer the duties of the office of
10 ombudsman-citizens aide. All staff serves at the pleasure of the
11 ombudsman-citizens aide, and they are exempt from chapter 4, articles 5
12 and 6 of this title. All staff are subject to the conflict of interest
13 provisions of title 38, chapter 3, article 8.

14 5. Before conducting the first investigation, adopt rules that
15 establish procedures for receiving and processing complaints, including
16 guidelines to ensure each complainant has exhausted all reasonable
17 alternatives within the agency, conducting investigations, incorporating
18 agency responses into recommendations and reporting findings.

19 6. Notify the chief executive or administrative officer of the
20 agency in writing of the intention to investigate unless notification
21 would unduly hinder the investigation or make the investigation
22 ineffectual.

23 7. Appoint an assistant to help the ombudsman-citizens aide
24 investigate complaints relating to the department of child safety. The
25 assistant shall have expertise in the department of child safety
26 procedures and laws. Notwithstanding any law to the contrary, the
27 ombudsman-citizens aide and the assistant have access to the department of
28 child safety records and direct remote access to any automated case
29 management system used by the department of child safety.

30 8. On or before December 31 of each year, submit a report to the
31 president of the senate, the speaker of the house of representatives, the
32 minority leader of the senate, the minority leader of the house of
33 representatives, the chairperson of the senate judiciary committee, or its
34 successor committee, and the chairperson of the house of representatives
35 judiciary committee, or its successor committee, that includes the number
36 of complaints made regarding the state department of corrections, the
37 topic of each complaint and how each complaint was resolved.

38 9. FOR A CHILD WELFARE OVERSIGHT MATTER, SUBMIT A QUARTERLY REPORT
39 TO THE PRESIDENT OF THE SENATE, THE SPEAKER OF THE HOUSE OF
40 REPRESENTATIVES, THE MINORITY LEADER OF THE SENATE, THE MINORITY LEADER OF
41 THE HOUSE OF REPRESENTATIVES, THE CHAIRPERSON OF THE SENATE COMMITTEE THAT
42 HAS JURISDICTION OVER CHILD SAFETY OR GOVERNMENT MATTERS AND THE
43 CHAIRPERSON OF THE HOUSE OF REPRESENTATIVES COMMITTEE THAT HAS
44 JURISDICTION OVER CHILD SAFETY OR GOVERNMENT MATTERS. THE REPORT SHALL BE
45 SUBMITTED IN AGGREGATE FORM AND SHALL HAVE ALL CONFIDENTIAL INFORMATION
46 REDACTED. THE REPORT MUST INCLUDE ALL OF THE FOLLOWING:

47 (a) THE NUMBER OF SUBSTANTIATED AND PARTIALLY SUBSTANTIATED
48 FINDINGS.

1 (b) THE NUMBER OF HIGH-RISK OR LIFE SAFETY VIOLATIONS.

2 (c) THE NUMBER OF CORRECTIVE ACTION ORDERS THAT WERE ISSUED AND THE
3 COMPLIANCE RATES FOR THOSE CORRECTIVE ACTION ORDERS.

4 (d) THE NUMBER OF CRIMINAL REFERRALS AND WRITTEN DISPOSITIONS
5 RECEIVED PURSUANT TO SECTION 41-1378, SUBSECTION I.]

6 B. After the conclusion of an investigation and notice to the head
7 of the agency pursuant to section 41-1379, the ombudsman-citizens aide may
8 present the ombudsman-citizens aide's opinion and recommendations to the
9 governor, the legislature, the office of the appropriate prosecutor or the
10 public, or any combination of these persons. The ombudsman-citizens aide
11 shall include in the opinion the reply of the agency, including those
12 issues that were resolved as a result of the ombudsman-citizens aide's
13 preliminary opinion or recommendation.>>

14 <<Sec. 4. Section 41-1378, Arizona Revised Statutes, is amended to
15 read:

16 41-1378. Complaint; investigation; investigative authority;
17 violation; classification

18 A. All complaints shall be addressed to the ombudsman-citizens
19 aide. If an agency receives correspondence between a complainant and the
20 ombudsman-citizens aide, it shall hold that correspondence in trust and
21 shall promptly forward the correspondence, unopened, to the
22 ombudsman-citizens aide.

23 B. Within thirty days ~~[of]~~ [AFTER] receipt of the complaint, the
24 ombudsman-citizens aide shall notify the complainant of the decision to
25 investigate or not to investigate the complaint. If the
26 ombudsman-citizens aide decides not to investigate and if requested by the
27 complainant, the ombudsman-citizens aide shall provide the reasons for not
28 investigating in writing.

29 C. The ombudsman-citizens aide shall not charge any fees for
30 investigations or complaints.

31 D. In an investigation, the ombudsman-citizens aide may:

32 1. Make inquiries and obtain information considered necessary
33 subject to the restrictions in section 41-1377.

34 2. Enter without notice to inspect agency premises with agency
35 staff on the premises.

36 3. Hold hearings.

37 4. Notwithstanding any other law, have access to all state agency
38 records, including confidential records, except:

39 (a) Sealed court records without a subpoena.

40 (b) Active criminal investigation records.

41 (c) Records that could lead to the identity of confidential police
42 informants.

43 (d) Attorney work product and communications that are protected
44 under the attorney-client privilege.

45 (e) Confidential information as defined in section 42-2001, except
46 as provided in section 42-2003, subsection L.

47 (f) Information protected by section 6103(d), 6103(p)(8) or 7213 of
48 the internal revenue code.

1 (g) Confidential information relating to section 36-2903,
2 subsection I, section 36-2917, section 36-2932, subsection F or section
3 36-2972.

4 (h) Confidential information relating to sections 36-507, 36-509
5 and 36-2220.

6 5. Issue subpoenas if necessary to compel the attendance and
7 testimony of witnesses and the production of books, records, documents and
8 other evidence to which the ombudsman-citizens aide may have access
9 pursuant to paragraph 4 of this subsection. The ombudsman-citizens aide
10 may only issue a subpoena if the ombudsman-citizens aide has previously
11 requested testimony or evidence and the person or agency to which the
12 request was made has failed to comply with the request in a reasonable
13 amount of time.

14 E. It is contrary to the public policy of this state for any state
15 agency or any individual acting for a state agency to take any adverse
16 action against an individual in retaliation because the individual
17 cooperated with or provided information to the ombudsman-citizens aide or
18 the ombudsman-citizens aide's staff.

19 F. If requested by the complainants or witnesses, the
20 ombudsman-citizens aide shall maintain confidentiality with respect to
21 those matters necessary to protect the identities of the complainants or
22 witnesses. The ombudsman-citizens aide shall ensure that confidential
23 records are not disclosed by either the ombudsman-citizens aide or staff
24 to the ombudsman-citizens aide. The ombudsman-citizens aide shall
25 maintain the confidentiality of an agency record. With respect to
26 requests made pursuant to title 39, chapter 1, article 2 or other requests
27 for information, the ombudsman-citizens aide shall maintain all records
28 that are received from a custodial agency in the same manner as the
29 custodial agency would if it had received the request.

30 G. The ombudsman-citizens aide or any staff member or other
31 employee of the ombudsman-citizens aide who knowingly divulges or makes
32 known in any manner not [permitted] [ALLOWED] by law any particulars of
33 any record, document or information for which the law restricts disclosure
34 is guilty of a class 5 felony.

35 H. IN A CHILD WELFARE OVERSIGHT MATTER, THE OMBUDSMAN-CITIZENS
36 AIDE MAY EXERCISE THE INVESTIGATIVE AUTHORITY PRESCRIBED IN SUBSECTION D
37 OF THIS SECTION WITH RESPECT TO A COVERED CHILD WELFARE ENTITY. THE
38 OMBUDSMAN-CITIZENS AIDE SHALL HAVE ACCESS TO ANY RECORDS THAT ARE
39 MAINTAINED BY OR ON BEHALF OF A COVERED CHILD WELFARE ENTITY THAT RELATES
40 TO THE SERVICES THAT ARE FUNDED, DIRECTED, CONTRACTED, LICENSED OR
41 AUTHORIZED BY THE DEPARTMENT OF CHILD SAFETY. A COVERED CHILD WELFARE
42 ENTITY SHALL PRESERVE ALL RELEVANT RECORDS ON RECEIPT OF A WRITTEN NOTICE
43 FROM THE OMBUDSMAN-CITIZENS AIDE OF AN INVESTIGATION OR AUDIT.

44 I. IF DURING AN INVESTIGATION OF A CHILD WELFARE OVERSIGHT MATTER,
45 THE OMBUDSMAN-CITIZENS AIDE FIND REASONABLE CAUSE TO BELIEVE THAT A PERSON
46 HAS COMMITTED A CRIMINAL OFFENSE, THE OMBUDSMAN-CITIZENS AIDE SHALL REFER
47 THE MATTER, WITH ALL SUPPORTING EVIDENCE, TO BOTH THE COUNTY ATTORNEY WITH
48 JURISDICTION OVER THE PERSON OR MATTER AND THE ATTORNEY GENERAL. THE

1 PROSECUTING AGENCY THAT RECEIVES A REFERRAL PURSUANT TO THIS SUBSECTION
2 SHALL PROVIDE A WRITTEN DISPOSITION TO THE OMBUDSMAN-CITIZENS AIDE WITHIN
3 NINETY DAYS AFTER RECEIVING THE REFERRAL THAT INDICATES THE STATUS OF THE
4 REFERRAL AND WHETHER THE PROSECUTING AGENCY HAS ELECTED TO PROSECUTE THE
5 MATTER OR DECLINED TO PROSECUTE THE MATTER.]>>

6 <<Sec. 5. Section 41-1379, Arizona Revised Statutes, is amended to
7 read:

8 41-1379. Procedures after an investigation

9 A. If an opinion or recommendation of the ombudsman-citizens aide
10 is critical of a person or agency, the ombudsman-citizens aide shall first
11 consult with the person or agency before rendering the opinion or
12 recommendation. A preliminary opinion or preliminary recommendation is
13 confidential and shall not be publicly disclosed by any party.

14 B. The ombudsman-citizens aide shall report the ombudsman-citizens
15 aide's opinion and recommendations to an agency, if the ombudsman-citizens
16 aide finds, after investigation, that:

17 1. A matter should be further considered by that agency.

18 2. A matter should be referred to the presiding officers of both
19 houses of the legislature for further investigation or legislative action.

20 3. A statute or rule on which an administrative act is based should
21 be amended.

22 4. An administrative act should be modified or ~~[cancelled]~~
23 ~~[CANCELED]~~.

24 5. Reasons should be given for an administrative act.

25 6. There are no grounds or there are insufficient grounds for
26 action by the agency.

27 7. Any other action should be taken by the agency.

28 8. The agency's action was arbitrary or capricious, constituted an
29 abuse of discretion or was not according to law.

30 C. The ombudsman-citizens aide may request the agency to notify the
31 office within a specified time of any action taken on his recommendations.

32 D. The ombudsman-citizens aide shall notify the complainant of the
33 ombudsman-citizens aide's recommendations and the actions taken by the
34 agency.

35 E. If the ombudsman-citizens aide believes there is a breach of
36 duty or misconduct by an officer or employee of an agency in the conduct
37 of the officer's or employee's duty, the ombudsman-citizens aide shall
38 refer the matter to the chief executive officer of the agency, to the
39 presiding officer of both houses of the legislature, to a prosecutor's
40 office or to another appropriate official or agency.

41 [F. NOTWITHSTANDING ANY OTHER LAW, IN A CHILD WELFARE OVERSIGHT
42 MATTER, IF, AFTER INVESTIGATION, THE OMBUDSMAN-CITIZENS AIDE MAKES A
43 SUBSTANTIATED OR PARTIALLY SUBSTANTIATED OPINION OR RECOMMENDATION THAT A
44 COVERED CHILD WELFARE ENTITY HAS VIOLATED ANY STATUTE, RULE, COURT ORDER,
45 DEPARTMENT OF CHILD SAFETY POLICY, CONTRACT REQUIREMENT OR LICENSING
46 STANDARD, THE OMBUDSMAN-CITIZENS AIDE SHALL ISSUE A CORRECTIVE ACTION
47 ORDER. A CORRECTIVE ACTION ORDER MUST INCLUDE ALL OF THE FOLLOWING:

48 1. THE FACTUAL BASIS FOR THE OPINION OR RECOMMENDATION.

1 2. THE SPECIFIC STATUTE, RULE, COURT ORDER, DEPARTMENT OF CHILD
2 SAFETY POLICY, CONTRACT REQUIREMENT OR LICENSING STANDARD THAT WAS
3 VIOLATED.

4 3. THE REQUIRED CORRECTIVE ACTION ORDER WITH A SPECIFIC DEADLINE
5 FOR IMPLEMENTATION OF THE CORRECTIVE ACTION ORDER.

6 4. ANY REQUIRED PREVENTION CONTROLS, IF APPLICABLE.

7 5. WHETHER THE OPINION OR RECOMMENDATION INVOLVES A HIGH-RISK OR
8 LIFE SAFETY VIOLATION.

9 6. A REQUIREMENT THAT THE COVERED CHILD WELFARE ENTITY SUBMIT A
10 WRITTEN COMPLIANCE PLAN AND BEGIN IMPLEMENTATION OF THE CORRECTIVE ACTION
11 ORDER WITHIN THIRTY DAYS AFTER RECEIVING THE CORRECTIVE ACTION ORDER.]>>

12 Sec. 6. Title 41, chapter 27, article 2, Arizona Revised Statutes,
13 is amended by adding section 41-3036.01, to read:

14 41-3036.01. Independent oversight committee on the department
15 of child safety; termination July 1, 2036

16 A. THE INDEPENDENT OVERSIGHT COMMITTEE ON THE DEPARTMENT OF CHILD
17 SAFETY TERMINATES ON JULY 1, 2036.

18 B. TITLE 8, CHAPTER 7 AND THIS SECTION ARE REPEALED ON JANUARY 1,
19 2037.

20 Sec. 7. Appropriation; independent oversight committee on the
21 department of child safety fund; intent; exemption

22 A. The sum of \$2,200,000 is appropriated from the general fund in
23 fiscal year 2026-2027 to the independent oversight committee on the
24 department of child safety fund established by section 8-933, Arizona
25 Revised Statutes, as added by this act, and is appropriated from the fund
26 to the independent oversight committee on the department of child safety.

27 B. The monies appropriated pursuant to subsection A of this section
28 shall be allocated as follows:

29 1. \$900,000 for personal services, employee-related expenses,
30 committee executive and supporting staff salaries.

31 2. \$600,000 for operating expenses.

32 3. \$300,000 for contracting services, including audits, expert
33 reviews and specialized evaluations.

34 4. \$300,000 for start-up and secure infrastructure costs, hardware
35 and dashboard development.

36 5. \$100,000 for contingency and oversight needs.

37 C. The legislature intends that beginning in fiscal year 2027-2028,
38 and each fiscal year thereafter, the legislature appropriate \$1,800,000 to
39 the independent oversight committee on the department of child safety fund
40 for continued committee operations.

41 D. The appropriation made in subsection A of this section is exempt
42 from the provisions of section 35-190, Arizona Revised Statutes, relating
43 to lapsing of appropriations.

44 Sec. 8. Initial terms of members of the independent oversight
45 committee on the department of child safety

46 A. Notwithstanding section 8-932, Arizona Revised Statutes, as
47 added by this act, the initial terms of members of the independent
48 oversight committee on the department of child safety are:

1 1. Five terms ending January [] [31], 2027.

2 2. Five terms ending January [] [31], 2028.

3 3. Five terms ending January [] [31], 2029.

4 B. The appropriate official shall make all subsequent appointments
5 as prescribed by statute.

6 Sec. 9. Purpose

7 Pursuant to section 41-2955, subsection E, Arizona Revised Statutes,
8 the legislature establishes the independent oversight committee on the
9 department of child safety to improve transparency, strengthen
10 accountability, enhance public confidence and support improvement in the
11 child welfare system.

12 Sec. 10. Severability

13 If a provision of this act or its application to any person or
14 circumstance is held invalid, the invalidity does not affect other
15 provisions or applications of the act that can be given effect without the
16 invalid provision or application, and to this end the provisions of this
17 act are severable.

18 Sec. 11. Legislative findings

19 A. The legislature finds that:

20 1. This state has a compelling interest in protecting children from
21 abuse and neglect and ensuring lawful, timely and effective child welfare
22 interventions.

23 2. Independent oversight improves transparency, strengthens
24 accountability, enhances public confidence and supports continuous
25 improvement in systems that are charged with child protection.

26 3. Oversight must preserve the confidentiality of child and family
27 information while allowing meaningful review of systemic performance and
28 critical incidents.

29 4. Effective oversight requires timely access to records,
30 independent staffing and clear reporting and response obligations.

31 B. The purpose of this act is to establish an independent oversight
32 body to do the following:

33 1. Evaluate the policies, practices and performance of the
34 department of child safety.

35 2. Review critical incidents and systemic risks.

36 3. Receive complaints and whistleblower information.

37 4. Refer credible evidence of criminal or civil violations to
38 appropriate authorities, including federal authorities when applicable.

39 5. Provide regular public reporting and recommendations to improve
40 child safety outcomes and compliance with state and federal law.

41 Enroll and engross to conform

42 Amend title to conform

And, as so amended, it do pass

House Amendments to H.B. 2860

WALT BLACKMAN
CHAIRMAN

2860GOVERNMENT.docx
02/19/2026
04:52 PM
C: LAT
130VYWZIK